

Court No. - 37

Case :- WRIT - C No. - 58399 of 2012

Petitioner :- Vimla Devi

Respondent :- Purvanchal Vidyut Bitaran Nigam Ltd. And Others

Petitioner Counsel :- V.K. Singh

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

Put up tomorrow as fresh.

Order Date :- 19.11.2012

VPC

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Hon'ble Ashok Bhushan,J.

Hon'ble Naheed Ara Moonis,J.

Heard learned counsel for the petitioner, Shri Mahboob Ahmad appearing for the respondent nos. 1 and 3 and learned Standing Counsel appears for respondent no.2.

By means of this writ petition, petitioner has prayed for quashing the recovery citation dated 30/7/2012, for recovery of an amount of Rs. 45308 + collection charges as electricity dues.

Petitioner's case in the writ petition is that the petitioner's house was closed for a long period and no meter reading was made and the bills given to the petitioner are excessive. It is submitted that on the basis of the excessive bills, recovery citation has been issued.

Learned counsel for the respondents submits that the remedy of the petitioner is to file appropriate complaint disputing the bills as provided under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

Learned counsel for the petitioner submits that the petitioner is ready to deposit 1/3rd of the amount as claimed in the citation and his complaint may be directed to be considered.

Considering the facts of the case and submissions made, end of justice be served in disposing of the writ petition with the following directions:-

i.) The petitioner shall deposit an amount of Rs.15,000/- before the Executive Engineer i.e. respondent no.3 within one month from today. On deposit of the aforesaid amount, the petitioner shall submit a complaint against the disputed bills before the Executive Engineer i.e. respondent no.3 within two weeks as provided under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

ii) The respondent no.3 shall decide the complaint of the petitioner and after decision of the complaint shall take steps, if any amount is still due against the petitioner for recovery. Till the respondent no.3 decides the complaint of the petitioner, no coercive steps be taken against the petitioner in pursuance of the citation dated 30/7/2012. However, after the complaint is decided, it shall be open for the respondents to take action in accordance with law.

iii) In event any default is committed by the petitioner in compliance of the order as directed above, the recovery against the petitioner shall revive.

With the aforesaid directions the writ petition is disposed of.

Order Date :- 20.11.2012/SB